

in *England and Wales*, as well as in *Consolidated, Reduced, and New 3l. per cent. Annuities.*"

[*309] * R. 18. "Every application for the purpose of the conversion of any stocks, funds, or securities into any other stocks, funds, or securities authorized by the last preceding rule, shall be served upon the trustees thereof if any, and upon such other persons if any as the Court or judge shall think fit."

7. Meaning of East India Stock. — It was at one time considered that the East India stock referred to in the Order of 1st February, 1861, was the old East India stock (*i.e.*, the capital stock of the East India Company), as the new loan had not then acquired the distinctive name of East India stock. But in a recent case in the Court of Appeal, the late M. R. stated that it had always been held that new East India stock was within the *intention* of the General Order, and it was held that new 3l. 10s. per cent. East India stock created under the powers of 42 & 43 Vict. c. 60, was within the order (*a*).

The old East India stock has now been redeemed or commuted, and has ceased to exist (*b*), and the loans under the several East India Loan Acts are now known as East India stock, and the recent order clearly includes the stocks created under those Acts.]

8. Applications under the Act. — Upon application under the Order of 1st February, 1861, the Court at first sanctioned investments in East India stock (*c*) upon the petition of the tenant for life, even though the market price of investment exceeded, as it commonly did, the fixed rate at which the stock would be redeemable in 1874, viz. 200l. per cent. (*d*).

[(*a*) *Ex parte* St. John Baptist College, Oxford, 22 Ch. D. 93.]

(*b*) See 36 Vict. c. 17, which provided for the redemption or commutation of the stock on or before 30 April, 1874.

(*c*) That is the old East India stock, technically known by that name; *Equitable Reversionary Interest Society v. Fuller*, 1 J. & H. 382; *Colne Valley and Halstead*

Railway Company, 1 De G. F. & J. 53; *Re Fromow's Estate*, 8 W. R. 272.

(*d*) *Bishop v. Bishop*, 9 W. R. 549; *Cohen v. Waley*, 7 Jur. N. S. 937; *Equitable Reversionary Interest Society v. Fuller*, 1 J. & H. 379. This cause was heard on appeal before L. J.J. on 17th July. 1861, when L. J. Knight Bruce thought the order should be sustained on special grounds, so that any expression of opinion by L. J.